

Calendar Line 2

Case Name: *Schwartz Family Trust*

Case No.: 21PR191181

The above-entitled action comes on for hearing before the Honorable Theodore Zayner on August 7, 2026, at 10:00 a.m. in Department 13. Having reviewed and considered the written submissions of the parties and being fully advised, the Court now orders as follows:

INTRODUCTION

On October 5, 2021, Petitioner Cindy Schwartz (“Petitioner”) initiated this action by filing a petition to remove the trustees of the Schwartz Family Trust (“the trust”), Paula Block Susan Friedman, and Betsy Schwartz (“Trustees”).³ On April 4, 2022, Trustees filed an objection to Petitioner’s petition. On June 9, 2022, Petitioner filed an amended petition and on June 17, 2022, Trustees filed an amended objection. On June 20, 2022, Petitioner filed a document titled “Petitioner’s Petition to Remove Trustees from the Schwartz Family Trust.”

On June 30, 2022, the court (Hon. Jacqueline Arroyo) held a hearing and took the matter under submission. The court issued its written order denying Petitioner’s petition to remove Trustees for lack of evidentiary support on September 29, 2022.

Between October 12, 2022 and June 20, 2024, Petitioner filed a plethora of documents, some purporting to appeal the court’s September 29, 2022 order and some purporting to be objections to that same order. None of these were noticed for hearing. Petitioner also filed two requests for dismissal of her “petition” on March 14, 2024 and January 14, 2025. Both requests were denied, the first because it was unclear which petition Petitioner was referring to and the other because the court had already denied the petition to remove trustees.

On August 7, 2025, Petitioner filed an untimely motion for reconsideration of the court’s September 29, 2022 order. The motion was denied via written order filed September 11, 2025. Petitioner filed a notice of appeal but the appeal, which had been assigned docket number H053863, was abandoned.

³ Betsy Schwartz passed away in 2024.

Currently before the court is Trustees’ motion to declare Petitioner a vexatious litigant. They seek an order that Petitioner must furnish security in the instant case as well as a prefiling order. Petitioner opposes the motion.⁴

DISCUSSION

I. Legal Framework for Vexatious Litigant Motion

Before a person can be declared a vexatious litigant he or she is “entitled to a noticed motion, and a hearing which includes the right to oral argument and the presentation of evidence.” (*Bravo v. Ismaj* (2002) 99 Cal.App.4th 211, 225 (*Bravo*); Code Civ. Proc., § 391.2.)⁵ “When considering a motion to declare a litigant vexatious, the court must weigh the evidence to decide whether the litigant is vexatious based on the statutory criteria and whether the litigant has a reasonable probability of prevailing. [Citation.] To be declared a vexatious litigant, the plaintiff must come within one of the definitions of section 391, subdivision (b). [Citation.]” (*Goodrich v. Sierra Vista Regional Medical Center* (2016) 246 Cal.App.4th 1260, 1265.)

“Any determination that a litigant is vexatious must comport with the intent and spirit of the vexatious litigant statute. The purpose of which is to address the problem created by the persistent and obsessive litigant who constantly has pending a number of groundless actions and whose conduct causes serious financial results to the unfortunate objects of his or her attacks and places an unreasonable burden on the courts. [Citations.] Therefore, to find that a litigant is vexatious, the trial court must conclude that the litigant[’]s actions are unreasonably impacting the objects of appellant’s actions and the courts as contemplated by the statute.” (*Morton v. Wagner* (2007) 156 Cal.App.4th 963, 970-971.)

II. Merits of the Motion

⁴ On July 27, 2026, Trustees filed a declaration and, on August 3, 2026, Petitioner filed a responsive declaration. It is not clear to the court whether the declaration and responsive declaration are meant to be considered with the motion. Because Trustees’ declaration indicates that it is meant to respond to documents filed by Petitioner for an August 12, 2026 hearing, the court concludes that Trustees’ July 27 declaration and Petitioner’s August 3 responsive declaration are not meant to be considered with the motion.

⁵ All further undesignated statutory references are to the Code of Civil Procedure.

Trustees seek an order declaring Petitioner a vexatious litigant, requiring a Petitioner to post security, and requiring Petitioner to seek permission before filing further litigation.

“In any litigation pending in any court of this state, at any time until final judgment is entered, a defendant may move the court, upon notice and hearing, for an order requiring the plaintiff to furnish security or for an order dismissing the litigation pursuant to subdivision (b) of Section 391.3. The motion for an order requiring the plaintiff to furnish security shall be based upon the ground, and supported by a showing, that the plaintiff is a vexatious litigant and that there is not a reasonable probability that they will prevail in the litigation against the moving defendant.” (§ 391.1, subd. (a).)

Trustees also seek a prefiling order under section 391.7, subdivision (a), “which prohibits a vexatious litigant from filing any new litigation in the courts of this state in propria persona without first obtaining leave of the presiding justice or presiding judge of the court where the litigation is proposed to be filed.” Declaring a person a vexatious litigant under section 391.7 does not require a pending proceeding, (see *Bravo, supra*, 99 Cal.App.4th at p. 222), nor does it require that the vexatious litigant be a plaintiff if it does occur in a pending proceeding (*In re Marriage of Deal* (2020) 45 Cal.App.5th 613, 621 [rejecting the argument that a court may only declare a plaintiff a vexatious litigant as a matter of law]).

Under section 391, subdivision (b)(2), a person may be found vexatious if “[a]fter a litigation has been finally determined against the person, [the person] repeatedly relitigates or attempts to relitigate, in propria persona, either (i) the validity of the determination against the same defendant or defendants as to whom the litigation was finally determined or (ii) the cause of action, claim, controversy, or any of the issues of fact or law, determined or concluded by the final determination against the same defendant or defendants as to whom the litigation was finally determined.” (§ 391, subd. (b)(2).) Section 391, subdivision (b)(3) provides that a person is a vexatious litigant who “[i]n any litigation while acting in propria persona, repeatedly files unmeritorious motions, pleadings, or other papers, conducts unnecessary discovery, or engages in other tactics that are frivolous or solely intended to cause unnecessary delay.”

“ ‘Litigation’ means any civil action or proceeding, commenced, maintained or pending in any state or federal court.” (§ 391, subd. (a).) “A litigation includes an appeal or civil writ proceeding filed in an appellate court. [Citations.] A litigation is finally determined adversely to a plaintiff if he does not win the action or proceeding he began, including cases that are voluntarily dismissed by a plaintiff. [Citations.]” (*Garcia v. Lacey* (2014) 231 Cal.App.4th 402, 406-407.)

The court finds the instant motion and its supporting paperwork to be underdeveloped and lacking in both argument and supporting evidence. (See *Chavez v. Netflix, Inc.* (2008) 162 Cal.App.4th 43, 51-52 [where motion for leave to intervene was supported by deficient memorandum and no declarations, trial court was justified in denying the motion on procedural grounds]; see also *Quantum Cooking Concepts, Inc. v. LV Assocs., Inc.* (2011) 197 Cal.App.4th 927, 934 [trial court not required to “comb the record and the law for factual and legal support that a party has failed to identify or provide”].) For example, Trustees assert, “On September 29, 2022, this Court entered an order determining:” but they do not state what the court determined. Notably, the September 29, 2022 order denied Petitioner’s petition to remove Trustees from their position as trustees. Trustees assert that Petitioner attempted to relitigate this order, but they point to no specific filings in the record that attempted to do so. While the court notes that Petitioner did file an untimely motion for reconsideration of the September 29, 2022 order, that one attempt at reconsideration is insufficient to establish that Petitioner “repeatedly” attempt to relitigate the outcome of the order. Moreover, Trustees’ evidence provided with the motion consists of two court orders, including the September 9, 2022 order, a declaration filed by Petitioner, and listings of court documents, without any discussion of whether they concern the same subject matter addressed in the orders. Accordingly, Trustees have not shown that Petitioner is a vexatious litigant within the meaning of section 391 and the motion is DENIED.

III. CONCLUSION

Trustees’ motion is DENIED. Nonetheless, Petitioner is admonished that repeated attempts at relitigation of issues already decided or repeated filing of unmeritorious motions

may result in a vexatious litigant designation. Trustees may renew their motion if such repeated unmeritorious filing occurs.

Moving party shall prepare the Order.

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